F

1949

CHINA

2

F 2120

Registry Number F2120/10127/10

FROM Foreign Office minute (Mr. Tomlinson).

No.

Dated 7 Feb 49

Received in Registry 9 Feb 49

F: China

Formosa: status of the present Chinese occupation and administration.

Submits draft letter to Mr. Graves, Washington, enclosing memorandum dated 4th February, prpeared by Mr. Tomlinson.

Last Paper

References

75801

(Print)

(How disposed of)

Dft/ Mr. Graves (w'tin) from Mr. [illegible]

8 Feb

(Action completed)	(Index)
14	EW 25/10/49

Next Paper

F3322

(Minutes)

35825

Mr

Minutes.

F 2120

3 F

Mr. Dening asked that the views embodied in a recent Departmental minute on Formosa should be communicated to Mr. Graves "with reference to his letter to me". Searches have been conducted in both White and Green Divisions but no letter from Mr. Graves to Mr. Dening discussing the particular question at issue has been discovered. I have therefore drafted to Mr. Graves without giving a specific reference.

F. S. Tomlinson
7th February, 1949.

Submitted

7/2

But I also wanted his views communicated to the Secretary of COS, re their paper on China.

7/2

Yes - I have done this, but on the minutes attached to COS appreciation - I'm sorry I omitted to say so.

7/2 11/2

Nothing to be Written in this Margin.

Registry
No.

Outside, 8th February 1949

4

~~Top Secret.~~
Secret.
~~Confidential.~~
Restricted.
~~Open.~~

F.S.T.

Secret

Draft. 8/2.

Mr. H.A. Graves,
WASHINGTON.

From:

Mr. Dening

We have recently been looking rather carefully into the status of the present Chinese occupation and administration of Formosa. In view of the ~~various references in your recent letters to the growing~~ American interest in this subject ~~Formosa~~, you will wish to ~~may be interested~~ to see the attached ~~copy of a~~ departmental note ~~minute~~ setting out our views, ~~on the subject.~~ ~~You will see that~~ Our conclusion is that Formosa is legally enemy territory under Allied occupation, and that strictly speaking, any change in the present position could only be made on the basis of agreement between the four Powers to whom Japan surrendered. We have been unable to unearth anything to justify the assumption that has cropped up in various quarters that Formosa is legally under the authority of SCAP (see for example paragraph 3 of Nanking telegram No. 27 of the 7th January to the Foreign Office).

If there is anything which you can add to our statement of the position we should be very grateful to hear from you.

I am sending a copy of this letter to Nanking.

"A" to "B" last minute

FLAG A

8/2.

Copy to:
NANKING

7/2

7/2

NOTHING TO BE WRITTEN IN THIS MARGIN.

(84615) Wt.84382/152 50,000 12/47 A.& E.W.Ltd. Gp.685
(85708) Wt.18462/150 150,000 5/48

FORMOSA. A

Formosa was of course internationally recognised as being under Japanese sovereignty before the war. At Cairo on the 1st December 1943 President Roosevelt, Generalissimo Chiang Kai-shek and Mr. Churchill declared "that all the territories that Japan has stolen from the Chinese such as Manchuria, Formosa, and the Pescadores shall be restored to the Republic of China". The Heads of the Governments of the United States, United Kingdom and China reaffirmed that "the terms of the Cairo Declaration shall be carried out" in the Potsdam Declaration issued on 26th July 1945. The Potsdam Declaration was subsequently adhered to by the Soviet Union.

General MacArthur was subsequently given a directive by the President of the United States appointing him to be Supreme Commander for the Allied Powers "for the purpose of enforcing the surrender of Japan", and this directive was issued "in accordance with the agreement among the Governments of the United States, Chinese Republic, the United Kingdom and U.S.S.R.". Paragraph 4 of this directive reads in part:

> "You will require the Japanese Imperial General Headquarters to issue general orders which will instruct Japanese Commanders wherever situated as to the mechanics of surrender and other details effectuating the surrender. You will effect any necessary co-ordination . . . . with regard to the surrenders to the Allied Commanders concerned of Japanese Armed Forces abroad".

In General Order No. 1, subsequently issued on the basis of consultation and agreement between the Powers concerned, Japanese forces in Formosa were instructed to surrender to Chiang Kai-shek. A Chinese Military Administration was thereupon set up in Formosa and subsequently superseded by a Chinese Civil Administration which is still in existence.

As to the legal status of Formosa, in a minute of the 28th November 1945, Mr. Fitzmaurice wrote:

> "As a matter of law the Cairo and Potsdam Declarations quite definitely do not operate to effect any automatic or immediate alterations in the status of Formosa on the cessation of hostilities with Japan. They are merely statements of intention to effect these in due course, but the necessary steps have yet to be taken, whether in the form of a Peace Treaty or by some other means. Nor did the Japanese acceptance of the Potsdam Declaration effect the change of itself. It merely constituted an advance recognition and acceptance of such steps as the Allies might eventually take for the purpose. Therefore in law Korea and Formosa are still under Japanese sovereignty and their special technical status is that of enemy territory under Allied military occupation. The inhabitants are still Japanese citizens. Formosa is not Chinese and Korea has not yet got sovereign independent status."

F 2120

Korea, or at any rate a part of Korea, has now acquired sovereign independent status; but the position in regard to Formosa remains the same.

When Japan surrendered she accepted the Potsdam Proclamation and surrendered, in fact, to the four Potsdam Powers.

It /

It was as a result of agreement among these Powers that General MacArthur was appointed to be Supreme Commander "for the purpose of enforcing the surrender of Japan" and the Basic Directives which he received were drawn up on the basis of agreement between the same Powers.

"The Basic Initial Post-Surrender Directive" issued to General MacArthur on the 24th October, 1945, begins as follows:-

"(a) This Directive defines the authority which you will possess and the policies which will guide you in the occupation and control of Japan in the initial period after surrender.

"(b) Japan, as used in this Directive, is defined to include: the four main islands of Japan ..... and about a thousand smaller adjacent islands ....."

It seems clear that it was never the intention of the Allied Powers that General MacArthur's mandate should extend to Formosa, nor has he in fact ever exercised authority over Formosa.

If the above is correct, then the control at present exercised over Formosa by the Chinese Government cannot be said to derive from authority delegated by SCAP; and it would appear that the only way in which General MacArthur could properly assume control over Formosa would be for a further Directive to be issued specifically extending his authority to Formosa. Such a Directive could only be issued on the basis of agreement among the Powers to whom Japan surrendered, and such agreement would obviously not be forthcoming.

The position appears to be that the Chinese have assumed the administration of Formosa pending the conclusion of a Treaty of Peace without there being any very precise international agreement on the subject. The final disposition of Formosa must await the signature of a Treaty of Peace or some instrument with similar effect. In the meantime Formosa remains at the disposal of the Powers to whom Japan surrendered; and it seems unthinkable that they would be able to agree among themselves as to what, if anything, should be done to change the present position.

Far Eastern Department,

Foreign Office.

8th February, 1949.

After ascertaining that Services Liaison Department saw no great urgency in obtaining observations on this paper, I have deferred commenting until Library had an opportunity of searching for papers which might indicate precisely the status of the present Chinese Administration in Formosa. Our own research has led to the conclusion that the position was rather imprecise; and unfortunately Library have not been able to add to our knowledge.

FORMOSA

Formosa was of course internationally recognised as being under Japanese sovereignty before the war. At Cairo on the 1st December, 1943 President Roosevelt, Generalissimo Chiang Kai-shek and Mr. Churchill declared "that all the territories that Japan has stolen from the Chinese such as Manchuria, Formosa, and the Pescadores shall be restored to the Republic of China". The Heads of the Governments of the United States, United Kingdom and China reaffirmed that "the terms of the Cairo Declaration shall be carried out" in the Potsdam Declaration issued on the 26th July, 1945. The Potsdam Declaration was subsequently adhered to by the Soviet Union.

General MacArthur was subsequently given a directive by the President of the United States appointing him to be Supreme Commander for the Allied Powers "for the purpose of enforcing the surrender of Japan", and this directive was issued "in accordance with the agreement among the Governments of the United States, Chinese Republic, the United Kingdom and U.S.S.R." Paragraph 4 of this directive reads in part:

> "You will require the Japanese Imperial General Headquarters to issue general orders which will instruct Japanese Commanders wherever situated as to the mechanics of surrender and other details effectuating the surrender. You will effect any necessary co-ordination ..... with regard to the surrenders to the Allied Commanders concerned of Japanese Armed Forces abroad".

In General Order No. 1, subsequently issued on the basis of consultation and agreement between the Powers concerned, Japanese forces in Formosa were instructed to surrender to Chiang Kai-shek. A Chinese Military Administration was thereupon set up in Formosa and subsequently superseded by a Chinese Civil Administration which is still in existence.

As to the legal status of Formosa, in a minute of the 28th November, 1945 Mr. Fitzmaurice wrote:

"As a matter of law the Cairo and

Potsdam/

Declarations quite definitely do not operate to effect any automatic or immediate alterations in the status of Formosa on the cessation of hostilities with Japan. They are merely statements of intention to effect these in due course, but the necessary steps have yet to be taken, whether in the form of a Peace Treaty or by some other means. Nor did the Japanese acceptance of the Potsdam Declaration effect the change of itself. It merely constituted an advance recognition and acceptance of such steps as the Allies might eventually take for the purpose. Therefore in law Korea and Formosa are still under Japanese sovereignty and their special technical status is that of enemy territory under Allied military occupation. The inhabitants are still Japanese citizens. Formosa is not Chinese and Korea has not yet got sovereign independent status."

Korea, or at any rate a part of Korea, has now acquired sovereign independent status; but the position in regard to Formosa remains the same.

When Japan surrendered she accepted the Potsdam Proclamation and surrendered, in fact, to the four Potadam Powers. It was as a result of agreement among these Powers that General MacArthur was appointed to be Supreme Commander "for the purpose of enforcing the surrender of Japan" and the Basic Directives which he received were drawn up on the basis of agreement between the same Powers.

"The Basic Initial Post-Surrender Directive" issued to General MacArthur on the 24th October, 1945 begins as follows:-

"(a) This Directive defines the authority which you will possess and the policies which will guide you in the occupation and control of Japan in the initial period after surrender.

"(b) Japan, as used in this Directive, is defined to include: the four main islands of Japan ..... and about a thousand smaller adjacent islands ...."

It seems clear that it was never the intention of the Allied Powers that General MacArthur's mandate should extend to Formosa, nor has he in fact ever exercised authority over Formosa.

~~If the above is correct~~ ~~the recommendation~~ of the Chiefs of Staff that we should press the United States to "consider the withdrawal of the authority over Formosa delegated by SCAP to the Chinese Government, should the latter come under Communist control" is based ~~on an erroneous view of the facts~~, It would appear that the only way in which General MacArthur/

If the above is correct ~~the recommendation that~~ control then the ~~authority~~ at present exercised over Formosa by the Chinese Government cannot be said to derive from an charity ~~exercise~~ delegated by SCAP; and

MacArthur could properly assume control over Formosa would be for a further Directive to be issued specifically extending his authority to Formosa. Such a Directive could only be issued on the basis of agreement among the Powers to whom Japan surrendered, and such agreement would obviously not be forthcoming.

The position appears to be that the Chinese have assumed the administration of Formosa pending the conclusion of a Treaty of Peace without there being any very precise international agreement on the subject. The final disposition of Formosa must await the signature of a Treaty of Peace or some instrument with similar effect. In the meantime Formosa remains at the disposal of the Powers to whom Japan surrendered; and it seems unthinkable that they would be able to agree among themselves as to what, if anything, should be done to change the present position.

F. S. Tomlinson
4th February, 1949.